# EQUIPMENT LEASE AGREEMENT

This Equipment Lease Agreement ("the Agreement") is made this 2 day of November, 2026 (the "Effective Date") between Fearless Leasing, LLC, having an address at 550 Beagle Road, Rockwood, PA 15557 (the "Lessor") and Plum Contracting, having an address at 864 Croft Road, Greensburg, PA 15601 (the "Lessee"). Lessee purchase order is included in Schedule A.

**1. Lease.** Lessor hereby leases to Lessee, and Lessee hereby leases from Lessor, the items of personal property of the Lessor (the "Equipment") listed in Schedule B.

**2. Term of Lease.** The Agreement will begin on the Effective Date and shall continue until all Equipment is returned to Lessor or it is terminated in accordance with this section. The terms ("Initial Term") of the lease for each piece of Equipment are listed in Schedule B. The Lessee will have the option to continue the terms for additional term periods (each a "Renewal Term") (the Initial Term and each applicable Renewal Term will be referred to as the "Term"). Lessor may terminate this Agreement, for any reason or for no reason, by delivering written notice to the Lessee ten (10) days prior to such termination; provided, that if such termination is because of the breach of Lessee, such termination shall be effective immediately. Lessee's obligations shall survive the termination of this Agreement and the return of all Equipment.

**3. Rental Charge.** The rental payment for the Equipment from Lessee to Lessor will be listed in Schedule B ("Term Rental"), plus shipping (if applicable) and sales tax (if applicable). If the Lessee is approved for credit by Lessor, Lessor shall invoice Lessee for rent and all other charges monthly. If the Lessee is not approved for credit by Lessor, the first payment is due on the execution hereof, and subsequent payments due and payable in advance on the Term Rental anniversary of the Effective Date. Lessee will continue making payments of the Term Rental through the Initial Term and all applicable Renewal Terms. Interest on any past-due payment shall accrue at the rate of 1% per month. Charges for taxes, penalties and interest shall be promptly paid by Lessee when invoiced by Lessor.

**4. Use of Equipment.** Lessee shall be entitled to use the Equipment for its ordinary purpose provided the Equipment is used and maintained in accordance with the Lessor's Terms and Conditions, specifications and instructions ("Lessor's Specifications") listed in Schedule C, and in accordance with all governmental laws, regulations and requirements, licenses, and all insurance requirements, if any, with respect to the use, maintenance and operation thereof. Lessee will at all times keep the Equipment in Lessee's custody and control. The Equipment shall not be moved from the location of initial delivery without the prior written consent of Lessor, which will not be unreasonably withheld or delayed.

**5. Modifications**. Lessee shall not make any modifications, additions, or changes in any Equipment except with Lessor's written consent.

**6. Maintenance and Repairs.** Lessee shall, at its sole expense, keep the Equipment in good working order and condition, perform and pay for all operating and maintenance expenses, and ensure that all necessary repairs and replacements thereto are timely made in accordance with the Lessor's Specifications in Schedule C.

**7. Equipment Operation**. Lessee shall provide a skilled, or if required by law or regulation, licensed and/or certified operator for the Equipment, who shall be an employee of Lessee or, if Lessee is an individual, may be Lessee (Lessee shall be sole responsible for all wages, taxes, insurance, and benefits related to Lessee's employment of operators).

**8. Ownership and Inspection.** The Equipment will at all times remain the property of the Lessor. Lessee shall not assign this agreement or any of its rights hereunder or sublease the Equipment without the prior written consent of Lessor. A transfer of this Agreement (i) by operation of law; or (ii) as part of a transaction or series of transactions by which a person or entity acquires all or substantially all of the assets or stock or other ownership interests of Lessee; or (iii) by merger, consolidation, or other business combination; or (iv) a change in control of the Lessee (which for purposes of this Agreement shall mean a change in management or the sale of 50% or more of the ownership interests of Lessee, in one or a series of related transactions) shall be considered an assignment under this Section 8 that shall require Lessor's prior written consent. Lessor or its agents shall have free access to the Equipment at all reasonable times and upon reasonable notice for the purpose of inspection and for any other purpose contemplated in this Agreement.

**9. Shipping; Installation; Return.** Lessee shall be responsible for the initial expense of shipping the Equipment to Lessee. Upon expiration or earlier termination of this Agreement, Lessee shall, at its sole expense, return the Equipment to Lessor (at the location designated by Lessor). To accommodate the return of the Equipment to Lessor, Lessee shall retain a third-party trucking company, which shall be chosen by Lessor at its sole discretion. Lessee is not permitted to use any trucking company that has not been designated by Lessor without Lessor's prior written consent. Lessee shall procure insurance for the delivery and return shipment of the Equipment on terms acceptable to Lessor. Lessee shall bear the risk of loss until Lessor has received the Equipment at the location designated by Lessor for return.

**10. Lessor Responsibility.** Lessor's sole liability and Lessee's sole remedies in any cause of action based on contract, tort, or otherwise in connection with the Equipment, shall be: (i) if the Equipment is not operational because of any defect in material or workmanship during any Term for more than 24 hours, to issue a credit prorated on an hourly basis based on the applicable rental rate to Lessee for any time during a Term that the Equipment is not operational, provided that Lessor is timely notified that such Equipment is not operational; (ii) replace the Equipment with similar Equipment, subject to availability; or (iii) terminate the rental of the Equipment. In no event shall Lessor be liable to Lessee or any third party for any claims, losses or damages arising from or related to this Agreement or the rental of the Equipment. Lessee waives and releases Lessor from all other claims and damages arising out of any inability to operate the Equipment (including compensatory, anticipatory, consequential, exemplary, and punitive damages) and all claims and damages sounding in tort.

**11. UCC. TO THE EXTENT PERMITTED BY APPLICABLE LAW, LESSEE HEREBY WAIVES ANY AND ALL RIGHTS AND REMEDIES CONFERRED UPON A LESSEE BY SECTION 2A-401 AND 2A-402, AND SECTION 2A-508 THROUGH 2A-522 OF THE UCC, PROVIDED HOWEVER, THAT THE FOREGOING WAIVER WILL IN NO EVENT IMPAIR OR DIMINISH ANY RIGHT OR REMEDY OTHERWISE CONFERRED UPON LESSEE IN THIS AGREEMENT.**

**12. Insurance; Risk of Loss.** Lessee shall obtain and maintain from the moment the Equipment is delivered to a third-party trucking company at Lessor's location, for the entire Term, and until the Equipment is redelivered to Lessor's location, at its own expense, property damage and liability insurance and insurance against loss or damage to the Equipment including, without limitation, loss by fire (including so-called extended coverage), theft and such other risks of loss as are customarily insured against the type of equipment leased hereunder, in such form as shall be reasonably satisfactory to Lessor, but in no event less than the replacement cost of all Equipment and general liability in amounts satisfactory to Lessor, naming Lessor, its successors and/or assigns additional insured and designate Lessor as loss payee for any and all damage to the equipment, and requiring 30 days' notice to Lessor of any cancellation, non-renewal or material coverage change. All insurance policies shall be with carriers acceptable to Lessor. Lessee shall provide Lessor with a certificate of insurance or other evidence acceptable to Lessor of the insurance coverage required by Lessor. Lessee shall comply with all terms of any insurance policy and shall notify Lessor in writing immediately upon the occurrence of any loss, theft, destruction, or damage of any Equipment.

**13. Indemnification.** Lessee will indemnify and defend Lessor, and Lessor's assigns, against any and all claims, liabilities, losses or damages (whether direct, indirect, special, incidental or consequential) including all court costs and reasonable attorneys' fees, to the extent arising from Lessee's acts or negligence.

**14. DISCLAIMER. EXCEPT AS PROVIDED IN THIS AGREEMENT, LESSOR MAKES NO WARRANTIES, GUARANTEES OR REPRESENTATIONS, EXPRESS OR IMPLIED, OF ANY KIND WITH RESPECT TO THE EQUIPMENT INCLUDING, WITHOUT LIMITATION, THE MERCHANTABILITY, VALUE, QUALITY, OR FITNESS FOR A PARTICULAR PURPOSE. LESSEE HAS SELECTED THE EQUIPMENT, INCLUDING ITS SIZE AND DESIGN, AND DISCLAIMS ANY RELIANCE UPON STATEMENTS MADE BY LESSOR.**

**15. Remedies.** Lessee shall be in default hereunder, and there shall be a breach of this Agreement, if: (a) Lessee makes repairs, additions or alterations to the Equipment inconsistent with this Agreement (or causes a third party to make repairs, additions or alterations in contravention of this Agreement; (b) Lessee attempts to sell, transfer, encumber, sublet or part with possession of the Equipment or any items thereof, except as expressly permitted herein; (c) Lessee shall fail to observe or perform any of the obligations required to be observed or performed by Lessee

hereunder; or (d) Lessee ceases doing business as a going concern, makes an assignment for the benefit of creditors, files a voluntary petition in bankruptcy, is adjudicated as bankrupt or insolvent, files a petition seeking for itself any reorganization, arrangement, composition, readjustment, liquidation, dissolution or similar arrangement under any present or future statute, law or regulation, or acquiesces in the appointment of, a trustee, receiver, or liquidator of it or of all or any substantial part of its assets or properties, or if it or its shareholders shall take any action looking to its dissolution or liquidation In the event that Lessee is in default hereunder, then, Lessor may at its option do any or all of the following: (i) by notice to Lessee terminate this Agreement; (ii) take possession of any or all of the Equipment wherever situated; and (iii) sell, dispose of, hold, use or lease any Equipment as Lessor in its sole discretion may decide, without any duty to account to Lessee. The waiver of any breach of any obligation shall not be deemed a waiver of such obligation or of any subsequent breach of the same or any other obligation. The subsequent acceptance of rental payments hereunder by Lessor shall not be deemed a waiver of any prior existing breach by Lessee regardless of Lessor's knowledge of such prior existing breach at the time of acceptance of such rental payments. The rights afforded Lessor under this Section 12 shall not be deemed to be exclusive but shall be in addition to any rights or remedies provided by law. This Section 12 shall survive the expiration or earlier termination of the Agreement.

**16. General.**

a. **Binding Agreement**. This Agreement shall not be binding upon Lessor unless signed on its behalf by a duly authorized officer.

b. **Assignment**. Lessee may not assign this Agreement, or any of its rights or obligations under this Agreement, (whether in connection with a merger, consolidation, sale, or otherwise) without Lessor's prior written consent, and Lessee's attempt to so assign is null and void and is a default under this Agreement. Lessor may assign its rights or obligations under this Agreement at any time.

c. **Relationship; Third Party Beneficiaries**. The parties are independent contractors, and this Agreement does not constitute — and must not be construed to create — a partnership, agency, joint venture, or employment relationship. Nothing in this Agreement gives one party the right, power, or authority to bind the other. Unless it states otherwise, this Agreement does not create any right in, or inure to the benefit of, any third parties.

d. **Cumulative Remedies; Survival**. All remedies provided in this Agreement, at law, or in equity, are cumulative and do not limit a party's other available rights or remedies. In addition to the provisions that are expressly made to survive this Agreement, the provisions of this Agreement that by their nature are intended to survive, will survive the expiration or other termination of this Agreement.

e. **Miscellaneous**. This Agreement binds the parties, their representatives, successors, and assigns. The parties may amend this Agreement only in a written document signed by both parties. No failure by either party to enforce or exercise any right under this Agreement shall constitute a waiver. If a provision of this Agreement is invalid or unenforceable, then the remainder of this Agreement will remain in full force and effect. The parties may sign and deliver this Agreement by facsimile or other electronic means, such as e-mail. A duly authorized representative of each party will sign this Agreement, and each signature constitutes conclusive proof of that person's authority to bind the party represented by that person.

f. **Applicable Law; Venue**. This Agreement shall be governed in all respects by the laws of Florida, without regard to the conflict of law principles thereof. The parties further agree that in any such action or proceeding, the prevailing party shall be entitled to recover all reasonable attorney's fees, costs and disbursements.

g. **Waiver of Jury Trial.** In any action, suit or proceeding in any jurisdiction brought by any party against any other party, the parties to the greatest extent permitted by applicable law, hereby expressly waives trial by jury.

h. **Entirety**. This Agreement, including all attachments hereto, constitutes the entire Agreement between Lessee and Lessor with respect to the Equipment, and no covenant, condition or other term or provision may be waived or modified orally. To the extent that this Agreement conflicts with the Lessor's Terms and Conditions, this Agreement shall prevail.

i. **Corporate Approvals.** Each party hereto represents and warrants to the other that all necessary corporate approvals have been obtained for it to enter into this agreement and the execution of this agreement will not violate any other current or pending agreement, order or law binding upon it or its assets; and this Agreement is enforceable against it in accordance with the terms hereunder.

j. **Execution in Counterparts.** This Agreement may be executed in counterparts, and each counterpart may be delivered in PDF format by facsimile or email, each of which shall be deemed an original, but all of which together shall constitute one and the same Agreement.

k. **Headings**. The headings, titles and captions contained in this Agreement are inserted only as a matter of convenience and for reference, and in no way define, extend or describe the scope of this Agreement or the intent or meaning of any provision herein.

**ACCORDINGLY**, the parties agree to be bound by the terms of this Agreement as of the date and year first written above.

Lessor:

By: _____
Name: Angela Svonavec
Title: President

Lessee:

By: _____
Name:
Title:

**SCHEDULE A – LESSEE PURCHASE ORDER**

(If blank, no purchase order provided)

Site Address:
8961 Lincoln Highway E
Irwin, PA 15642

PO: 234-164

**SCHEDULE B - DESCRIPTION OF EQUIPMENT AND RENTAL TERMS**

| Equip. # | Make | Model | Serial Number | Repl. Value | Hours | Term | Date In | Date Out | MOB In/Out | Term Rental Amount |
|---|---|---|---|---|---|---|---|---|---|---|
| 2526 | CAT | 306-07CR | A6G613683 | $110,000.00 | 449.5 | 28 Day Cycle | 11/2/26 | TBD | $250.00 EA | $3,200.00 |
| | | | | | | Term | | | | |

(1) MOB In/MOB Out will be billed and are due with first month's rental invoice

(2) If returned early or late, weekly and monthly rates will be charged/credited accordingly:

| Equip. # | Make | Model | Serial Number | Weekly | Monthly |
|---|---|---|---|---|---|
| 2526 | CAT | 306-07CR | A6G613683 | $1,400.00 | $350.00 |
| | | | | | |

## SCHEDULE C – LESSOR'S SPECIFICATIONS

- Hours allowed: 8/Day, 40/Week, 160/4-week period. In the event that any Equipment is operated for more than its allowed hours (as indicated by the Equipment's HOUR service meter), Lessee shall pay, in addition to the Rental Charge, an hourly overtime charge equal to: (a) if rented daily, 1/8 of the daily Rental Charge; (b) if rented weekly 1/40 of the weekly Rental Charge, and (c) if rented 4 week period, 1/160 of the monthly Rental Charge.
- Equipment shall be returned to Lessor full of fuel, in clean condition, in the same operating order, repair, condition and appearance as on the Effective Date, and free of hazardous substances, with all attachments, accessories, replacement parts, and safety items, except for ordinary wear and tear from normal use and operation, as determined by Lessor. If the Equipment is not returned in such condition. Lessee shall pay all costs for repairing, refueling and/or cleaning the Equipment.
- Allowable tire wear for a 200-hour month is 2/32$^{nd}$ per month. Lessee will be charged $100 per additional 32$^{nd}$ of wear.
- Lessee is responsible to maintain Equipment in accordance with machine operating and maintenance guides including:
    - Standard 250-hour service
    - Replace broken belts
    - Replace faulty hoses
    - Repair minor leaks, for example o-rings on hoses
    - Monitor and replenish oil and\or other fluids
    - Replace filters
    - Properly lube components
    - Replace broken glass
    - Make adjustments for damaged tires
    - All other repairs beyond the normal wear and tear determined by Lessor
- In the event you have any questions concerning repairs or service of the Equipment, please contact Jason Svonavec @ 814-442-1652.